

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500689	BONILLA VS FCA US, LLC	MOTION FOR ATTORNEYS FEES BY GONZALO BONILLA

Tentative Ruling: Granted in part.

Granted in reduced, but reasonable amount of \$10,517.50 and costs granted in amount of \$1,622.35. Defendant to pay Plaintiff attorney fees and costs within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On January 28, 2025, Plaintiff Gonzalo Bonilla ("Plaintiff") filed a Complaint against Defendant FCA US, LLC ("Defendant") for (1) Violation of Song-Beverly Act – Breach of Implied Warranty of Merchantability; (2) Violation of Song-Beverly Act – Breach of Express Warranty; (3) Fraudulent Concealment; and Violation of the Consumers Legal Remedies Act ("CLRA"). On March 4, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") asserting the same causes of action. In the FAC, Plaintiff alleges that on February 24, 2021, he leased a 2021 Jeep Gladiator (the "Vehicle") with implied and written warranties from Defendant. (FAC at ¶¶ 5-9.) The Vehicle suffered from defects and Defendant failed to repair the defects after a reasonable number of attempts. (Complaint at ¶¶ 11, 12, 99-101.)

On May 16, 2025, Defendant filed an Answer to the FAC.

On October 14, 2025, Defendant served a C.C.P. § 998 Offer to Compromise ("998 Offer") on Plaintiff, offering to pay Plaintiff \$165,000, plus reasonable costs and attorney's fees to be determined, in exchange for the return of the Vehicle. Plaintiff accepted the 998 Offer on October 20, 2025.

Plaintiff seeks attorney's fees and costs totaling \$18,595, which includes \$15,430.50 in incurred attorney's fees, a 0.1 multiplier enhancement (\$1,543.05), and \$1,622.35 in costs. He argues that, as the prevailing party, he is entitled to recover all of the fees and costs reasonably incurred in connection with this lawsuit, and the hourly rates and number of hours billed for work performed are reasonable. He also argues that a small multiplier enhancement is appropriate.

In opposition, Defendant argues that the fees should be reduced because the fees are excessive for how quickly the case was resolved; counsel's rates are excessive and unreasonable; the hours billed on this motion are unreasonable; and a multiplier is not appropriate.

In reply, Plaintiff argues that the opposition was untimely and should therefore not be considered; counsel's rates are not excessive or unreasonable; and since Defendant does not contest the request for costs, all costs should be awarded.

Song Beverly Attorney Fees

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Ibid.*) There is no dispute that Plaintiff is the prevailing party in this case.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Under the Song Beverly Act, "[a] trial court may not rubberstamp a request for attorney fees, but must determine the number of hours reasonably expended." (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) The court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The experienced trial judge is the best judge of the value of professional services rendered in his or her court and may make his or her own determination of the value of the services contrary to, or without the necessity for, expert testimony. (*Id.* at 1096.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

Here, there is no dispute that Plaintiff is the prevailing party. The court will exercise its discretion and consider the opposition since Plaintiff did have an opportunity to file a reply to it.

Plaintiff's counsel's billing records indicate a lodestar figure of \$15,430.50, based on 26.4 hours billed. In opposing Plaintiff's request, Defendant first objects that the hourly rates billed by Plaintiff's counsel are excessive and unreasonable. The hourly rates for Plaintiff's counsel are as follows: David Barry, \$695/hour; Kris Storti, \$600/hour; and Debora Rabieian, \$525/hour. It is the job of the Court to determine whether counsel's rates are reasonable, and the hourly rates set forth above are excessive, especially for a simple lemon law case. (See, *EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Therefore, Mr. Barry's rate will be reduced to \$550/hour, Ms. Storti's rate will be reduced to \$500/hour, and Ms. Rabieian's rate should be reduced to \$425 per hour. This results in a reduction of \$3,045.50 from the lodestar identified by Plaintiff.

Defendant also objects to the amount billed for preparing the present motion and the estimated amount for preparing the reply and attending the hearing on the motion. These objections have merit because while Plaintiff's counsel has significant lemon law experience, based on the billing records provided, their use of canned motions did not result in the significant savings it should have. Counsel billed 2.6 hours for preparing the motion. This will be reduced to 2.0 hours, resulting in a reduction of \$255 (0.6 x \$425). Counsel anticipates spending 6.0 hours preparing the reply and attending the hearing on the motion. This will be reduced to 2.5 hours, resulting in a reduction

of \$1,612.50 ([1.5 x \$425] + [1 x \$550]). Thus, the total reduction from the lodestar is \$4,913 (\$3,045 + \$255 + \$1,612.50). This results in a reduced fee award of \$10,517.50 (\$15,430.50-\$4,913).

Further, there will be no multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.)

Here, there is no reason for an enhancement; this is merely double billing. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel’s contingency fee should already be accounted for in counsel’s hourly rate.

Costs

Under C.C.P. §1032(b), unless otherwise provided, “a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” Again, there is no dispute that Plaintiff is the prevailing party. C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that “are not allowable as costs, except when expressly authorized by law.” An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).)

“A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) If the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.* at 774.)

Here, Plaintiff filed a Memo of Costs seeking \$1,622.35 in costs incurred in this action. All of the costs sought appear to be proper, and Defendant raised no objections to any of the costs.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2505175	SV VALENCIA EUROPEAN INC. VS BMW OF NORTH AMERICA, LLC	DEMURRER ON 1ST AMENDED COMPLAINT OF SV VALENCIA EUROPEAN INC. BY BMW OF NORTH AMERICA, LLC

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday, September 10, 2026, 8:30 a.m., Department PS2.